# Claim to an Employment Tribunal

Form ET1 • Office use only: Case number 2206543/2026 • Date received 4 February 2026 • Tribunal office: London Central

## Section 1 — Your details (the claimant)

| | |
|---|---|
| **1.1 Title** | Mr |
| **1.2 First name** | Adrian John |
| **1.3 Surname** | Foxley |
| **1.4 Date of birth** | 14 March 1971 |
| **1.5 Address** | 12 Marsh Lane, Sevenoaks, Kent TN13 2QP |
| **1.6 Phone / email** | 07700 900112 / adrian.foxley@gmail.com |

## Section 2 — Respondent's details

| | |
|---|---|
| **2.1 Name of employer** | Kingsford Group Limited |
| **2.2 Registered office** | Kingsford House, 80 Cannon Street, London EC4N 6HL |
| **2.3 ACAS early conciliation no.** | R123456/26/01 |
| **2.4 EC certificate date** | 2 February 2026 |

## Section 3 — Employment details

| | |
|---|---|
| **3.1 Job title** | Group Operations Director |
| **3.2 Employment start** | 4 September 2019 |
| **3.3 Employment end** | 19 December 2025 |
| **3.4 Still employed?** | No |
| **3.5 Gross annual pay** | £178,000 (plus 10% pension, car allowance, PMI and bonus) |
| **3.6 Notice period** | 6 months |

## Section 4 — Type of claim

The claimant brings claims for: (i) unfair dismissal (s.94 Employment Rights Act 1996); (ii) automatically unfair dismissal for having made protected disclosures (s.103A ERA 1996); and (iii) detriment on the ground of protected disclosures (s.47B ERA 1996). The claimant seeks compensation and a declaration. The claimant does not seek reinstatement or re-engagement.

## Section 5 — Details of claim

5.1 The claimant was employed by the respondent as Group Operations Director from 4 September 2019 until his summary dismissal on 19 December 2025, a period of over six years' continuous service.

5.2 Between September and November 2025 the claimant raised a number of concerns, in writing, about health-and-safety practices and a maintenance backlog at certain Brampton Leisure clubs operated within the respondent's group, including the adequacy of fire-door and swimming-pool plant inspection records. The claimant reasonably believed, and these disclosures tended to show, that the health and safety of individuals was being, or was likely to be, endangered, and that the respondent was failing to comply with its legal obligations. The disclosures were made in the public interest and are qualifying protected disclosures under s.43B ERA 1996.

5.3 Shortly after making those disclosures, and notwithstanding the absence of any prior performance concern, the claimant was placed at risk of redundancy on 1 December 2025 in a pool of one and dismissed on 19 December 2025. The purported redundancy was a sham. The real reason, or principal reason, for the dismissal was that the claimant had made the protected disclosures, such that the dismissal is automatically unfair under s.103A.

5.4 Further or alternatively, the dismissal was ordinarily unfair under s.98. The respondent failed to carry out any genuine consultation, failed to apply any fair selection criteria or pool, predetermined the outcome, and provided an appeal that was not independent. The respondent also failed to follow the Acas Code of Practice on Disciplinary and Grievance Procedures, in respect of which the claimant seeks an uplift of up to 25%.

5.5 The claimant was also subjected to detriments short of dismissal on the ground of the protected disclosures, including being excluded from management meetings and having his responsibilities removed from November 2025, contrary to s.47B.

5.6 The claimant has suffered loss of earnings, pension and benefits, and injury to feelings. A full schedule of loss will be served. The claimant's losses are substantial and, in respect of the protected-disclosure claims, are not subject to the statutory cap.

## Section 6 — What compensation are you seeking?

The claimant seeks a basic award, a compensatory award (uncapped in respect of the protected-disclosure dismissal), compensation for the s.47B detriments including an award for injury to feelings, an uplift under the Acas Code, and interest. The claimant's preliminary estimate of value exceeds £180,000.

## Section 7 — Your representative

| | |
|---|---|
| **7.1 Name** | Eleanor Bartlett |
| **7.2 Organisation** | Ashworth Quinn LLP |
| **7.3 Address** | 30 Finsbury Square, London EC2A 1AG |
| **7.4 Reference** | EB/FOX/0042 |
| **7.5 Email** | eleanor.bartlett@ashworthquinn.com |

**I confirm that the details given in this claim form are true to the best of my knowledge and belief.**

Signed: A. Foxley (electronically submitted) Dated: 4 February 2026